From: Jonathan Lynch
To: Edward Snook; Des Hobson
Cc: SBC Development Control; Scanning
Subject: S/COND/23/0154 / Land North Of A420, Eastern Villages Swindon
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S/COND/23/0154 / Land North Of A420, Eastern Villages Swindon
Discharge of conditions 36 (Construction Method Statement), 37 (Construction and Environmental Management Plan), 13 (Tree Protection) 53 (Slab Levels) and 54 (Materials) from previous application S/OUT/13/1555

SUMMARY – INSUFFICIENT INFORMATION

I have reviewed the ecological information (associated with conditions 13 and 37) submitted in support of this application and advise that insufficient information has been provided to determine the application. The following information is required:

- Details of compensatory planting as previously requested in April 2023 for compliance with the NPPF 2024 192(b); and
- A CEMP which contains details of necessary mitigation for protected species for compliance with condition 37.

PREVIOUS COMMENTS

Previous ecological comments on this application (dated 11 April 2023) noted that this application lacked an updated ecological assessment, lacked evidence that the applicant had entered into a District Level Licensing (DLL) scheme for great crested newts, did not adhere to the mitigation hierarchy regarding biodiversity losses, proposed the removal of trees apparently unaffected by works (e.g. T66, T63 and T64) and did not detail any compensatory planting. Revised and updated documents have been received and reviewed.

Arboricultural Impact Assessment (FPCR, January 2025)

This report confirms that three mature trees are to be removed to accommodate the junction works: T63 and T64 (two old ash coppice stools) and T204 (an English elm). Two hedgerows are also to be fully or partially removed: H29 (south of railway line, fully removed) and H30 (north side of A420, part of SW end removed for visibility).

Section 6.1 of the report states *"[as] part of the development proposals new tree planting will be proposed which will more than mitigate the losses required for the Old Vicarage Lane proposals."* Section 6.2 indicates that this will occur *"within public open space within the wider development"* which (6.3) *"will be determined within future landscaping proposals."* This lack of detail was noted as a concern in April 2023, when the LPA ecologist stated *"[these] proposals are needed now, rather than later, as the individual assurances made now are likely to get forgotten."*

Even if we accept that this compensation will be delivered within the wider development, we need to know how much compensation will be required or what form it might take. I note that recent planning appeals have required development which is otherwise exempt from statutory BNG to demonstrate a measurable 1% biodiversity net gain with use of Natural England's biodiversity metric (APP/Y3940/W/21/3278256, APP/Y3940/Q/21/3278923, APP/Y3940/W/21/3282365, APP/M2270/W/21/3273022). If the applicant proposes to *"keep a running total of tree/hedge removals and offset these at a later date"* as the Covering Letter states, this should be done with use of the biodiversity metric so that this commitment has some weight.

The proposals are currently incompliant with paragraph 192(b) of the NPPF as a path to delivering measurable net gains for biodiversity has not been demonstrated.

Construction Environmental Management Plan & Method Statement (CEMPMS) (GHPC, January 2025)

Section 3.5 of this document *"ECOLOGY & ARBORICULTURE"* contains zero details as all details of necessary mitigation for protected species (required by condition 37) are consigned to the Appendix.

Previous ecological comments from April 2023 stated: *"the ecology information needs to be included in the body of this document, rather than as an appendix which is unlikely to get read by the construction team."* I reiterate this statement. The details found within section 2 of the Ecological Method Statement (FPCR, January 2025) should be integrated into the CEMP so that its recommendations are actionable and cross-referencing between documents is not required.

I note that the site covered by an active GCN mitigation licence (2024-00670-EPS-DLL).

If you have any queries regarding these comments, please do not hesitate to get in touch.

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This response was submitted following consideration of the following:

- A420 Junction Application Site Plan (David Lock Associates, January 2023)
- Arboricultural Impact Assessment (FPCR, January 2025)
- Construction Environmental Management Plan & Method Statement (CEMPMS) (GHPC, January 2025)